

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No. 32970/2019E
ANDREW FERRIN and ISAAC PEREZ,

AMENDED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, JOEL BUCHANAN, and
JOHN DOES # 1-6, being the fictitious names of New York
City Police Officers whose names are unknown to Plaintiffs,

Defendants.

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Plaintiffs ANDREW FERRIN and ISAAC PEREZ, through their counsel, hereby
amend their prior complaint as of right, pursuant to CPLR 3025(a), and, for their
amended complaint, state the following upon information and belief:

PARTIES

1. Plaintiff ANDREW FERRIN is an individual who resides in the County of
Bronx, State of New York.

2. Plaintiff ISAAC PEREZ is an individual who resides in the County of
Bronx, State of New York.

3. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.

4. Defendant JOEL BUCHANAN is an individual whose residence is
unknown to Plaintiffs, and who is a New York City Police Department officer.

5. Defendants JOHN DOEs # 1-6 are individuals whose residences and names are presently unknown to Plaintiffs, and who are New York City Police Department officers.

6. Defendants JOEL BUCHANAN and JOHN DOEs # 1-6 (hereinafter referred to together as "Defendant Police Officers") are being sued both in their individual capacities and in their official capacities as police officers employed by Defendant CITY in its New York City Police Department.

**PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK FOR
STATE-LAW CAUSES OF ACTION**

7. Plaintiffs have served a timely notice of claim(s) upon Defendant CITY within 90 days after Plaintiffs was/were falsely arrested, detained, battered and/or maliciously prosecuted, as described in this complaint.

8. At least 30 days have elapsed since the service of such notice of claim(s) and that adjustment or payment has been neglected or refused.

FACTS

9. On June 28, 2019 at about 11:30 P.M. Plaintiffs were lawfully on a motor cycles in the location of Bruckner Boulevard in County of Bronx, State of New York.

10. On June 28, 2019, Defendant JOEL BUCHANAN (Shield # 19436) was a New York City Police Department officer.

11. On June 28, 2019 at about 11:30 P.M., Defendant JOEL BUCHANAN and the other Defendant Police Officers stopped and arrested Plaintiffs, who are Hispanic, for no reason.

12. A reasonable person or police officer should have known that Plaintiffs had committed no crime, violation, or infraction.

13. Defendant Police Officers had no warrant to arrest Plaintiffs.

14. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiffs.

15. After initially stopping Plaintiffs, Defendant Police Officers claimed to Plaintiffs that the motorcycles they were on were stolen.

16. Plaintiffs told him they were not stolen and that Plaintiffs were the lawful owners of the motorcycles.

17. Plaintiffs also offered to show the registration paperwork to Defendant JOEL BUCHANAN and the other Defendant Police Officers; however, they refused to look at it.

18. In addition, Defendant Police Officers could have looked up the ownership of the motorcycles in their police computer in their squad cars -- which has access to the N.Y.S Dept. of Motor Vehicles' database -- to see that the motorcycles were owned by and registered to the Plaintiffs.

19. Defendant Police Officers failed and refused to do this.

20. Defendant Police Officers, then, arrested and handcuffed Plaintiffs and took them to jail.

21. Before being handcuffed, Plaintiffs attempted to inform Defendant Police Officers that they committed no crime and that they did not want be handcuffed and go to jail, but Plaintiffs went peacefully and submitted without resistance to the false arrest.

22. Upon arrival at the jail, Plaintiffs was subjected to a humiliating search

and was deprived of all money and personal belongings and incarcerated with scary criminals.

23. Eventually, Plaintiffs were released from jail after many hours.

24. All charges against Plaintiffs were dismissed.

25. After being released from jail, a criminal proceeding was brought against Plaintiffs titled People of the State of New York v. Issac Perez and Andrew Ferrin in the Criminal Court of the City of New York, County of Bronx, under docket number 2019BX017696.

26. As a result of this criminal complaint, Plaintiffs had to appear publicly as criminal defendants in court.

27. Because the charges in the criminal proceeding had no merit, all charges against Plaintiffs (who were criminal defendants at the time) were dismissed before the case ever went to trial.

28. After the charges were dismissed, Plaintiff reclaimed their motorcycles, which were damaged and one of their cell phones was stolen by Defendant Police Officers and never returned.

FIRST CAUSE OF ACTION
(Violation of 42 U.S.C § 1983)

29. Plaintiffs repeat and re-allege every allegation in this amended complaint.

30. Defendant Police Officers intended to confine and completely confined Plaintiffs.

31. Plaintiffs were cognizant of the confinement.

32. Plaintiffs voiced objections to the confinement in which they did not

consent.

33. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

34. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights and discriminating against him and profiling him because of his race.

35. Defendant Police Officers violated Plaintiffs civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

36. Pursuant to 42 U.S.C. § 1983, Plaintiffs is entitled to damages from Defendant JOEL BUCHANAN for violations of Plaintiffs' constitutionally protected civil rights.

37. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

38. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that falsely arresting individuals, such as Plaintiffs based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to falsely arrest Plaintiffs and others in the future.

39. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiffs are also entitled to damages from Defendant CITY for violations of Plaintiffs' constitutionally protected

civil rights against.

40. Finally, all Defendants are liable for paying Plaintiffs an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION
(False arrest/imprisonment)

41. Plaintiffs repeat and re-allege every allegation in this amended complaint.

42. Defendant Police Officers intended to confine and completely confined Plaintiffs.

43. Plaintiffs were cognizant of the confinement.

44. Plaintiffs voiced strenuous objections to the confinement in which they did not consent.

45. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.

46. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.

47. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.

48. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiffs.

THIRD CAUSE OF ACTION
(Battery)

49. Plaintiffs repeat and re-allege every allegation in this amended complaint.

50. Defendant Police Officers acts were intentional.

51. Defendant Police Officers conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiffs amounting to the civil tort of battery.

52. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.

53. Defendant CITY, therefore, is vicariously liable for the battery that Defendant JOEL BUCHANAN inflicted upon Plaintiffs.

54. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION
(Negligence)

55. Plaintiffs repeat and re-allege every allegation in this amended complaint.

56. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.

57. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiffs.

58. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.

59. Consequently, Defendant Police Officers are liable for negligence.

60. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiffs.

61. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

62. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION
(Negligent Hiring and Retention)

63. Plaintiffs repeat and re-allege every allegation in this amended complaint.

64. Defendant CITY had a duty to hire and retain competent police officers.

65. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

66. Defendant CITY breached its duty to hire and retain competent police officers.

67. As a result of the CITY's breach, the Plaintiffs suffered damages.

68. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant Police Officers.

SIXTH CAUSE OF ACTION
(Negligent Damage and Loss of Property)

69. Plaintiffs repeat and re-allege every allegation in this complaint.

70. Defendants seized Plaintiffs' motorcycles and cell phones.

71. While in the possession of Defendants, the motorcycles sustained property damage in amount that cannot be ascertained with certainty at this point but is believed to be about \$10,000.00.

72. In addition, Defendant Police Officers stole, lost and/or failed to return one of Plaintiffs' cell phones.

73. Defendant Police Officers had a duty to safeguard Plaintiffs' motorcycles and cell phones.

74. Defendant Police Officers breached this duty.

75. Accordingly, all Defendants are liable for the negligent damage to Plaintiffs' property and for not returning a cell phone.

SEVENTH CAUSE OF ACTION
(Malicious Prosecution)

76. Plaintiffs repeat and re-allege every allegation in this complaint.

77. Defendants brought a prior criminal proceeding against Plaintiff titled People of the State of New York v. Issac Perez and Andrew Ferrin in the Criminal Court of the City of New York, County of Bronx, under docket number 2019BX017696.

78. On September 30, 2019, the prior criminal proceeding terminated in favor of Plaintiffs (where Plaintiff was named a criminal defendant).

79. Defendant Police Officers had malice in prosecuting Plaintiffs in the prior criminal proceeding.

80. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

WHEREFORE, Plaintiffs demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the

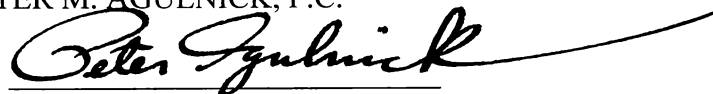
amount of \$2 million against all Defendants;

- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) on the Sixth Cause of Action (Negligent Damage and Loss of Property), actual damages in the amount of \$5,000.00 against all Defendants;
- (g) on the Seventh Cause of Action (Malicious Prosecution), actual and punitive damages in the amount of \$2 million against all Defendants;
- (h) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Manhasset, New York
December 13, 2019

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorney for Plaintiffs

ANDREW FERRIN

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(Our File # 473-001)

TO: JAMES E. JOHNSON, ESQ.
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JOEL BUCHANAN, Defendant
C/O New York City Police Dept.
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New York, New York 10038

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SUPPLEMENTAL SUMMONS and AMENDED COMPLAINT

PETER M. AGULNICK, P.C.

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This office does not accept service of litigation papers by electronic means except for cases where the case has been designated an "E-file" case and, in those instances, we still do not consent to service by fax.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 13, 2019

Signature: 

Name:

Peter M. Agulnick
